

24CHCV03232 24CHCV03232

County: los-angeles

Division: Civil Law and Motion

Department: F49

Hearing date: 2026-07-29

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF49%2C07%2F29%2F2026

Source SHA-256: 74b52c6927311682c83bf0d536d4fa840aee4a99e968ac69eadeb2592173ec5

Case Number: 24CHCV03232 Hearing Date: July 29, 2026 Dept: F49

Dept. F49

Date: 7/29/26

Case Name: Shawn Sanderfer vs. Equity Lifestyle

Properties, Inc.; Thousand Trails Management Services, Inc.; MHC Property
Management, L.P.; MHC TT, L.P.; and Does 1-25

Case No. 24CHCV03232

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 29, 2026

MOTION TO COMPEL FURTHER

RESPONSES TO SPECIAL INTERROGATORIES; REQUEST FOR SANCTIONS

Los Angeles Superior

Court Case No. 24CHCV03232

Motions filed: 9/25/25

MOVING PARTY: Plaintiff Shawn Sanderfer

RESPONDING PARTY: Defendant MHC TT, L.P.

NOTICE: OK

RELIEF REQUESTED: An order from this Court compelling Defendant MHC TT, L.P. to provide further responses to Plaintiff's Special Interrogatories, Set One, Nos. 3-8, and 20-21; and awarding sanctions in the amount of \$3,000.00.

TENTATIVE RULING: The Motion is GRANTED IN PART. The request for sanctions is GRANTED IN PART.

BACKGROUND

This action arises from personal injuries Plaintiff Shawn Sanderfer ("Plaintiff") sustained on September 10, 2022, allegedly due to a dangerous condition at Defendants' Thousand Trails Soledad Canyon RV resort (the "Soledad Canyon Property").

On September 9, 2024, Plaintiff filed a Complaint against Defendants Equity Lifestyle Properties, Inc. ("Equity Lifestyle"), Thousand Trails Management Services, Inc. ("TTMSI"), MHC Property Management, L.P. ("MHC Property"), MHC TT, L.P. ("MHC TT") (collectively, "Defendants"), and Does 1 through 25, alleging four causes of action: (1) negligence, (2) premises liability, (3) intentional infliction of emotional distress, and (4) negligent infliction of emotional distress. On November 22, 2024, Defendants filed their joint Answer to the Complaint.

On September 25, 2025, Plaintiff filed the instant Motion to Compel Further Responses to Special Interrogatories, Set One (the "Motion").

On July 16, 2026, MHC TT filed an Opposition.

On July 22, 2026, Plaintiff filed a Reply.

ANALYSIS

“On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete. (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate. (3) An objection to an interrogatory is without merit or too general.” (Code Civ. Proc., § 2030.300, subd. (a).)

A.

Procedural Requirements

(1)

Meet and Confer

A motion to compel further responses to interrogatories must be accompanied by a meet and confer declaration under Section 2016.040. (Code Civ. Proc., § 2030.300, subd. (b)(1).) A meet and confer declaration must “state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040.)

Plaintiff’s counsel, Russell J. Miller

(“Miller”), attests that he sent Defendants’ counsel a detailed meet-and-confer letter on July 15, 2025, identifying a number of deficiencies in responses to Plaintiff’s discovery requests. (Miller Decl., ¶ 10.) The letter demanded supplemental responses by July 24, 2025. (Ibid.) Defendants’ counsel responded on July 21, 2025, requesting an extension of time to provide supplemental responses. (Id., ¶ 11.) The parties agreed to extend both the time for supplementation and the deadline for filing a motion to compel. (Ibid.) After continued exchange, Defendants supplemented some but not all of the responses identified by Miller as deficient. (Id., ¶¶ 14-15.) The parties then conferred extensively regarding the responses that remained deficient and agreed to further extend the motion-to-compel deadline to September 25, 2025. (Id., ¶¶ 16-17.) On August 29, 2025, Defendants served further supplemental responses but did not supplement responses to the requests at issue in the Motion. (Id., ¶ 19.)

The Court finds Plaintiff’s meet-and-confer effort to be satisfactory.

(2)

Separate Statement

“Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement. The motions that require a separate statement include a motion ... (2) To compel further responses to interrogatories.” (Cal. Rules of Court, Rule 3.1345, subd. (a).) The separate statement must “provide[] all information necessary to understand ... all the responses ... that are at issue” and “be full and complete so that no person is required to review any other document in order to determine the full request and the full response.” (Id., Rule 3.1345, subd. (c).)

Although the caption of the Motion indicates that it was filed concurrently with a separate statement, the Court is not in receipt of the separate statement. Nevertheless, as the parties have fully briefed the issues, the Court proceeds to consider the merits of the Motion.

B.

Motion to Compel Further Responses to Special Interrogatories, Set One

“Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits.” (Code Civ. Proc., § 2030.220, subd. (a).) “If an interrogatory cannot be answered completely, it shall be answered to the extent possible.” (Code Civ. Proc., § 2030.220, subd. (b).) “If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.” (Code Civ. Proc., § 2030.220, subd. (c).)

“As a general matter, the statutory scheme imposes no obligation on a party propounding interrogatories to establish good cause or prove up the merits of any underlying claims.” (Williams v. Superior Court (2017) 3 Cal.5th 531, 550.) A litigant “is entitled to demand answers to its interrogatories, as a matter of right, and without a

prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section.” (Id., at p. 541, citing *West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 422.)

MHC TT served initial responses to Plaintiff’s Special Interrogatories, Set One on June 18, 2025. (Miller Decl., ¶ 9.) After meeting and conferring regarding the responses, MHC TT served supplemental responses on August 20, 2025 and further supplemental responses on August 29, 2025, but never supplemented the responses presently at issue. (Id., ¶¶ 14-19.) Plaintiff contends that the responses to Special Interrogatory Nos. 3-8, 20-21, and 25 are evasive and incomplete. (Mot., at p. 3.)

(1)

Special Interrogatories, Set One, Nos. 3-8

Special Interrogatories Nos. 3 through 8 ask MHC TT to “DESCRIBE IN DETAIL any RELATIONSHIP” between MHC TT and: (1) Equity Lifestyle (Nos. 3-4), (2) MHC Property (Nos. 5-6), and (3) TTMSI (Nos. 7-8), both generally and as the relationships relate to the Soledad Canyon Property. (Miller Decl., Exh. 1, at p. 5.)

(a)

Responses to Special Interrogatory Nos. 3-8

MHC TT’s responses to Special Interrogatory Nos. 3-8 make the following general objection to each of these interrogatories: “Objection, the interrogatory is vague and ambiguous with respect to the term[] ‘relationship.’” (Miller Decl., Exh. 3, at pp. 4-5.)

MHC TT also provides the following responsive information:

Response to Special Interrogatory No. 3:

“Equity Lifestyle, inc. is a self-administered REIT that does not own or operate the property where the subject incident took place. MHC Property Management, L.P. is the entity that manages the property where the subject incident took place. MHC Property Management, L.P., is an indirect, wholly owned subsidiary of EQUITY LIFESTYLE PROPERTIES, INC. (“ELP”).” (Miller Decl.,

Exh. 3, at p. 4.)

Response to Special Interrogatory No. 4:

"Equity Lifestyle, inc. is a self-administered REIT that does not own or operate the property where the subject incident took place. MHC TT, L.P. is the entity that owns the property where the subject incident took place. MHC TT is an indirect, wholly owned subsidiary of EQUITY LIFESTYLE PROPERTIES, INC. ("ELP")." (Miller Decl., Exh. 3, at p. 4.)

Response to Special Interrogatory Nos. 5

and 6: "MHC TT L.P. is the entity that owns the property where the subject incident took place. MHC PROPERTY is the entity that manages the subject property. MHC Property and MHC TT, L.P. are indirect subsidiaries of EQUITY LIFESTYLE PROPERTIES, INC." (Miller Decl., Exh. 3, at pp. 4-5.)

Response to Special Interrogatories Nos.

7 and 8: "There is no relationship between Responding Party and Thousand Trails. Thousand Trails does not own or manage the property where the subject incident took place. Thousand Trails is a company which provides management services to state governments and is not related to the subject property." (Miller Decl., Exh. 3, at pp. 5-6.)

Plaintiff argues that these responses

are incomplete because "DESCRIBE IN DETAIL" and "RELATIONSHIP" are defined such that MHC TT must provide information concerning shared personnel, shared offices and resources, financial flows, formal or informal agreements between the entities, and payment of one entity's obligations by another. (Mot., at p. 7.)

In its Opposition, MHC TT asserts that

it served supplemental responses on February 24, 2026 that name all of its officers and directors and describe in further detail the space and personnel overlap between the entities. (Opp'n, at p. 4.) Plaintiff argues that the responses remain evasive because they still do not provide any description of financial flows between the entities. (Reply, at pp. 2-3.) Specifically, the interrogatories define "RELATIONSHIP" to include the "financial transactions, loans, or transfers of funds or assets; ... agreements, formal or informal, governing the relationship between the entities or PERSONS; and ... instances in which the expenses, debts, or obligations of one entity were paid by another entity or PERSON." (Miller Decl., Exh. 1, at p. 3.) MHC TT contends that the

response is complete and straightforward but admittedly does not include any information regarding the financial relationship of the entities, arguing that such information is not within the scope of permissible discovery. (Opp'n, at p. 5.)

As the responses do not fully address the inquiry of the foregoing interrogatories, the Court finds them to be incomplete. The Court next considers MHC TT's objections to the interrogatories.

(b)

Disclosure of Financial Information

MHC TT contends that the interrogatories are overbroad in their request for corporate financial information. (Opp'n, at p. 5.)

First, MHC TT cites Civil Code section 3295 to argue that Plaintiff's request for financial information is procedurally improper. Civil Code section 3295 permits the court, for good cause, to grant a protective order requiring that a plaintiff present a prima facie case of the defendant's liability for exemplary damages before obtaining discovery about that defendant's financial condition. (Civ. Code, §§ 3294, 3295.) The interrogatories at issue, however, do not seek information about MHC TT's financial condition. They seek information relevant to shared financial management of the entities to determine whether there is common governance. Section 3295 accordingly does not apply.

MHC TT also asserts that veil-piercing discovery is unjustified until Plaintiff first makes a factual showing supporting his alter-ego liability theories. (Opp'n, at p. 7.) However, the cases MHC TT cites regarding alter-ego liability do not support limiting discovery in this way. *Hennessy's Tavern, Inc. v. American Air Filter Co.* (1988) 204 Cal.App.3d 1351 (Hennessy's) addressed when alter-ego issues may be raised (in the pleadings, at trial, at a hearing to determine the true identity of the judgment debtor, or in a subsequent enforcement action) and when the alter-ego defendant must be served after first being added as a new defendant in an amended complaint. (Hennessy's, at pp. 1358-1360.) And *Greenspan v. LADT, LLC* (2010) 191 Cal.App.4th 486 held that it was error to deny a motion to add a party as a judgment debtor on an alter-ego theory on the ground

that alter-ego liability was not raised in arbitration, reasoning that requiring plaintiffs to name a corporation and all its affiliated entities in the complaint would result in unnecessary investigation into such claims without regard to the circumstances. (Greenspan, at p. 517.) Neither case requires a plaintiff to present a prima facie case of alter-ego liability in order to obtain relevant discovery.

Even if a reasonable basis for the assertion of an alter-ego theory were required to seek discovery of information relating to asset commingling, the Court finds that the commonality of officers and directors among the Defendants and their general partners, as shown in Defendants' supplemental responses, supplies that basis. (Medel Decl., Exhs. 2, 3.)

The Motion is accordingly GRANTED as to Special Interrogatory Nos. 3-8.

(2)
Special Interrogatories, Set One, Nos.
20-21

Interrogatory No. 20: "IDENTIFY YOUR current officers, including their names, titles, and dates of service." (Miller Decl., Exh. 1, at p. 7.)

Interrogatory No. 21: "IDENTIFY all of YOUR current members." (Miller Decl., Exh. 1, at p. 7.)

Response to both: "Objection, the interrogatory is wholly overbroad, burdensome and seeks information not likely to lead to the discovery of admissible evidence. Further, the interrogatory seeks information wholly irrelevant to the subject matter. A party may obtain discovery regarding any matter not privileged, that is relevant to the subject matter involved in the pending action or the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. *Emerson Electric Co. v. Superior Court* (1997) 16 Cal.4th 1101, 1108. Although the scope of discovery is broad it is not without limits. Objection, the interrogatory seeks private information. California courts have held that the right to privacy is not absolute, but discovery that invades privacy

must be justified by a compelling interest. Merely being a board member does not, by itself, make a person's identity or personal information discoverable. Article 1, Section 1 of the California Constitution. Responding Party is willing to meet and confer on this issue to determine the relevance of the requested private information to the subject matter." (Miller Decl., Exh. 3, at pp. 10-11.)

MHC TT asserts that its supplemental responses, served on February 24, 2026 and July 15, 2026, supply the information sought, listing the names of all of its officers, directors, and partners. (Opp'n, at p. 5.) Plaintiff contends that the responses to these interrogatories are still incomplete because the dates of service for the individuals are not included. (Reply, at pp. 3-4.)

Special Interrogatory No. 20 specifically requests dates of service for MHC TT's officers. The supplemental response supplies only their names and titles and is accordingly not a complete response to the inquiry. (Medel Decl., Exh. 3, at pp. 27-29.) Special Interrogatory No. 21 does not request dates of service.

Based on the foregoing, the Court GRANTS the Motion as to Special Interrogatory No. 20. As to Special Interrogatory No. 21, the Motion is DENIED.

(3)

Special Interrogatories, Set One, No. 25

Special Interrogatory No. 25: "If YOU contend that YOU should not be a party to this lawsuit, DESCRIBE IN DETAIL all facts that support YOUR contention." (Miller Decl., Exh. 1, at p. 7.)

Response: "Not applicable." (Miller Decl., Exh. 3, at p. 12.)

MHC TT asserts that it has made no contention that it is not a proper party to this action, and that Special Interrogatory No. 25 therefore does not apply to it. (Opp'n, at p. 6.)

Plaintiff contends that the response is incomplete because MHC TT offers no facts suggesting that it is not a proper

party to the action. (Reply, at p. 4.) The interrogatory, however, is a contention-based interrogatory, and a response is predicated upon the contention being held. MHC TT asserts that it does not hold the stated contention. The response that the interrogatory is not applicable is therefore a complete response to the inquiry.

The Motion is DENIED as to Special Interrogatory No. 25.

C.

Monetary Sanctions

“The court may impose a monetary sanction and order that one engaging in the misuse of the discovery process ... pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc. § 2023.030, subd. (a).) Misuse of the discovery process includes making an evasive response to discovery. (Id., § 2023.010, subd. (f).)

“The court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).)

Plaintiff requests that the Court impose sanctions against MHC Property in the amount of \$3,000.00, calculated as 6 hours' work in connection with preparing the Motion and supporting papers, preparing a reply, and appearing on the Motion. (Miller Decl., ¶ 21.)

MHC TT contends that the amount of sanctions sought is egregious given that Plaintiff has filed four identical motions regarding these same interrogatories, one directed to each Defendant. (Opp'n, at p. 8.) The Court notes that two of these motions have already been heard and agrees that the motions are substantially similar such that awarding the full amount requested would result in compensation disproportionate to the reasonable amount of work incurred. The Court finds Plaintiff's counsel's hourly rate of \$500.00 to be reasonable and finds the total and reasonable attorney fees in connection with the Motion to be \$750.00 (.5 hours reasonably expended on the moving and reply

papers and one hour for the appearance, at the rate of \$500.00).

The request for sanctions is thus GRANTED
IN PART.

CONCLUSION

Plaintiff's motion to compel Defendant MHC TT, L.P.'s further responses to Plaintiff's Special Interrogatories, Set One is GRANTED IN PART. Defendant MHC TT, L.P. is ordered to serve verified further responses to Plaintiff's Special Interrogatories, Set One, Nos. 3-8 and 20 within 20 days.

Plaintiff's request for monetary sanctions is GRANTED IN PART. Defendant MHC TT, L.P. is ordered to pay \$750.00 to Plaintiff within 20 days.

Moving party to give notice.